

AMENDMENT NO. 2 TO DATA SERVICES AGREEMENT

Revised Financial Terms and Pricing Schedule

Term	Detail
Amendment Reference	Amendment No. 2 to Agreement NXC-DB-2022-0134
Parties	Nexacore Inc. and VendorD Solutions Inc.
Effective Date	July 1, 2025
Original Agreement Date	January 15, 2022

WHEREAS, Nexacore Inc. ("Client") and VendorD Solutions Inc. ("Provider") entered into the Data Services Agreement No. NXC-DB-2022-0134 dated January 15, 2022, and Amendment No. 1 thereto dated January 10, 2023 (collectively, the "Agreement"); WHEREAS, annual data volumes have significantly exceeded initial projections, reflecting the growing strategic importance of Provider's data assets to Client's platform; WHEREAS, the parties desire to establish a revised pricing framework that reflects current volume levels and provides predictable economics for both parties through the remainder of the contract term; NOW THEREFORE, the parties agree as follows:

1. BACKGROUND AND PURPOSE

This Amendment No. 2 is entered into to revise the financial terms of the Agreement effective July 1, 2025. The revised terms reflect a mutual acknowledgment that actual data volumes have grown substantially beyond the baseline assumptions underlying the original pricing structure. The parties have negotiated these revised terms in good faith with the objective of maintaining a commercially equitable and sustainable arrangement through the expiration of the Agreement on December 31, 2027.

2. REVISED ANNUAL MINIMUM COMMITMENTS

2.1 Effective as of the Effective Date, Section 3.1 (Annual Minimum Commitment) of the Agreement is hereby amended and restated in its entirety as follows:

Contract Year	Contract Period	Annual Minimum Commitment	Per-Record Base Rate
Year 3	January 1, 2025 - December 31, 2025	\$480,000	\$0.0016/record
Year 4	January 1, 2026 - December 31, 2026	\$520,000	\$0.0015/record
Year 5	January 1, 2027 - December 31, 2027	\$560,000	\$0.0014/record

2.2 The Annual Minimum Commitment shall be payable in equal monthly installments. To the extent that cumulative record deliveries in any Contract Year do not meet the volume threshold implied by the Annual Minimum, Client shall pay a year-end true-up equal to the Annual Minimum less the total fees actually invoiced, due within thirty (30) days of Provider's issuance of an annual reconciliation statement.

3. VOLUME DISCOUNT SCHEDULE

3.1 For records delivered in excess of the volume included in the Annual Minimum Commitment, the following volume discount schedule shall apply, calculated on a cumulative annual basis and applied to the Per-Record Base Rate for the applicable Contract Year:

Annual Record Volume Threshold	Discount Applied	Notes
Below 50 million records	0% (base rate)	Standard per-record base rate applies
50 million – 100 million records	10% discount	Applied to overage records in this tier
100 million – 200 million records	20% discount	Applied to overage records in this tier
Above 200 million records	30% discount	Applied to all records exceeding 200M threshold

3.2 Volume discounts shall be calculated quarterly and applied as a credit against the following month's invoice. Provider shall provide a quarterly volume report within ten (10) business days of each quarter's end, showing cumulative record counts, applicable tiers, and the resulting discount credits.

4. PAYMENT TERMS

All invoices shall be issued on a monthly basis and are due Net-30 from date of receipt. Client's preferred payment method is ACH electronic transfer. An annual reconciliation statement shall be issued within thirty (30) days of each Contract Year-end. Client shall notify Provider in writing of any invoice dispute within fifteen (15) business days of receipt, and the parties shall resolve any bona fide dispute within thirty (30) days through good-faith negotiation. Undisputed portions of invoices remain due on the normal payment schedule.

5. LATE FEES AND REMEDIES

Amounts outstanding beyond forty-five (45) days from the invoice due date shall accrue interest at the rate of one and one-half percent (1.5%) per month. If Client's account remains delinquent beyond sixty (60) days, Provider may, upon ten (10) days prior written notice, suspend data deliveries until the delinquent balance is cured. Provider's right to suspend is in addition to, and not in lieu of, any other remedies available at law or equity.

6. PRICE ESCALATION PROTECTION

The Per-Record Base Rates set forth in Section 2 are fixed for Contract Years 3 through 5. Provider may not increase pricing for Years 4 and 5 beyond the rates specified in the table in Section 2.1, except that Provider may propose CPI-based adjustments for Year 5 subject to a maximum increase of four percent (4%) over the Year 4 rate. Any such CPI adjustment proposal must be submitted to Client in writing no later than ninety (90) days before the commencement of Contract Year 5, and shall become effective only upon Client's written acceptance.

7. DISPUTED INVOICES

If Client disputes any portion of an invoice in good faith, Client shall: (a) pay all undisputed amounts by the due date; (b) provide written notice to Provider within fifteen (15) business days specifying the nature and amount of the dispute; and (c) cooperate in good faith with Provider to resolve the dispute within thirty (30) days. If the parties are unable to resolve a dispute within thirty (30) days, the matter shall be escalated to senior management of each party for resolution within an additional fifteen (15) days, failing which either party may pursue its remedies under the Agreement.

8. REMAINING TERMS UNCHANGED

Except as expressly set forth in this Amendment No. 2, all terms and conditions of the Agreement, including Amendment No. 1, shall remain in full force and effect and are hereby ratified and confirmed in their entirety. This Amendment No. 2, together with the Agreement and Amendment No. 1, constitutes the entire agreement of the parties with respect to the subject matter hereof.

FOR MERKLE INC.

Signature: _____

Name: _____

Title: _____

Date: _____

FOR DATABRIDGE SOLUTIONS INC.

Signature: _____

Name: _____

Title: _____

Date: _____